

OFFICE OF THE SECRETARY

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August 19, 2020

The Honorable Talmadge Jones
Judge of the Superior Court
County of Sacramento
720 Ninth Street
Sacramento, CA 95814

Re: Ruben Antonio Banuelos
CDCR No: P10937
Case No: 97F05444, 93F02611, 94F06369
Date of Sentence: September 04, 1998

Dear Honorable Talmadge Jones:

The purpose of this letter is to provide the court with the authority to resentence inmate Ruben A. Banuelos, P10937 pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1), based upon his exceptional conduct while incarcerated. PC Section 1170, subdivision (d)(1) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Inmate Banuelos has not received any Serious Rules Violation Reports since July 3, 2014. Inmate Banuelos is currently assigned as a yard worker. Inmate Banuelos also participates in Alcoholics Anonymous, Voluntary College, and Criminals and Gangs Anonymous. Inmate Banuelos has received 45 General and Laudatory Chronos from these group sponsors acknowledging his commitment and dedication to these self-awareness and improvement groups.

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Inmate Banuelos met the standards of the General Educational Development and received his High School Equivalency Certificate on February 12, 2000 at Mule Creek State Prison. There are no active or potential holds, warrants, or detainers. Staff stated Banuelos started out as a troublemaker, but has really changed. He takes his position with youthful offenders very seriously and when kids act up in the program, Banuelos steps in to straighten them out.

Having reviewed the enclosed documentation, it appears that inmate Banuelos' sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,


RALPH M. DIAZ
Secretary

Enclosures:
Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Honorable David De Alba, Presiding Judge
Sacramento County District Attorney's Office
Sacramento County Public Defender's Office